

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA.**

PRC Appeal No.12/2025

M/S Nizam Baloch & Brothers.

..... Appellant

Versus

Executive Engineer, Irrigation Department & Others

..... Respondents

APPEAL UNDER RULE 56-A AGAINST THE TSE NO.252608801953

For the Appellant:

Muhammad Nasir (Authorized Person)

For Respondent No.1:

Ali Murad, Sub Divisional Officer, Irrigation Department, Mastung

Order Sheet: 19th September, 2025

The Appellant filed appeal under Rule 56-A against TSE#252608801953 published in daily newspaper vide PRQ.NO. 417/04-08-2025 for "Construction of Delay Action Dam at Khak Mushk Dasht Baba Piringabad area District Mastung". The Appellant challenged his disqualification by the Procuring Agency. The Appellant further stated that despite submission of his application before CRC, the CRC failed to reach any decision.

In consequence of notices issued to the Respondents, Mr. Ali Murad, SDO, Irrigation Mastung appeared before the Chairman, Procurement Review Committee and placed his statement regarding cancellation of the above tender in accordance with BPP Rule- 38 (1) after submission of challan. Further the same was verified and it appeared that the status of above TSE was cancelled on the Authority's website.

Rule-38 (1) is reproduced as under:

"A Procuring Agency may cancel the bidding process at any time prior to the acceptance of a bid or proposal".

Since the Procuring Agency has cancelled the said tender/above TSE, hence the appeal seeking relief becomes infructuous. Moreover, the cancellation of the tender under 38(1) is neither appealable nor reviewable.



The Rule 58(b) does not allow the cancellation of the tender to be reviewed under Rule 38(1). Rule 58 (b) is reproduced as under:

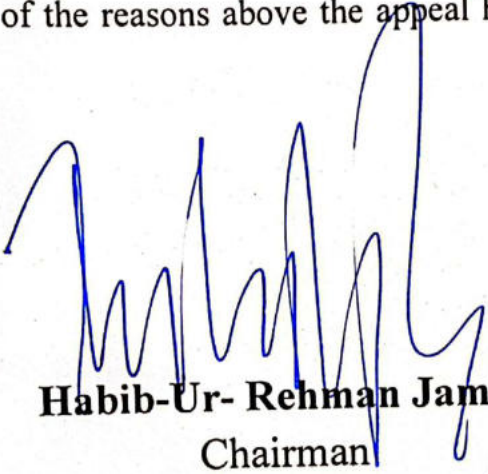
58. "Matters not subject to Appeal or Review

"The following actions of the Procuring Agency shall not be subject to the appeal or review

(b) decision by the Procuring Agency under rule 38 to cancel the bidding process".

However, the Procuring Agency is directed to consider the bids of the Appellant and other bidders on merit in accordance with BPP Rules without inserting any difficult conditions and selected criteria wherever the scheme is re-tendered.

In view of the reasons above the appeal has become infructuous therefore is dismissed.


Habib-Ur- Rehman Jamot

Chairman

**Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)**

19/9/2025